the disclosure of these reports, on the basis that they were privileged and concerned affairs of the state. An affidavit filed by Chief Secretary Ojha stated that the disclosure of the reports would 'hamper the proper functioning of the public service as the officers would in future feel hesitant in expressing their opinions fearlessly in such administrative matters'.[15] The magistrate rejected this claim of privilege stating that the documents did not concern affairs of state, but the conduct of an individual.

The state government challenged the magistrate's decision in the Punjab and Haryana High Court. It had better luck on this occasion. The judge of the high court (coincidentally also a 'Bajaj')[16] held that the reports were protected from disclosure by virtue of Article 163(3) of the Constitution, which stated that no court could inquire into what advice ministers (which would include an adviser such as Ribeiro) tendered to the governor. The court also saw no public interest in the disclosure of these reports, since Ribeiro was not an eyewitness to the incident. For the court, Ribeiro's report would have been no more useful than Mrs Bajaj's own evidence.[17] This time, it was Mr Bajaj that appealed to the Supreme Court against the high court's decision.

In the meantime, Gill had filed a petition asking the Punjab and Haryana High Court to quash the complaints of Mrs and Mr Bajaj. Representing Gill, prominent criminal lawyer K.T.S. Tulsi argued that his client lacked an intention to commit any of the offences alleged. The fact that Mrs Bajaj willingly walked over to Gill to sit next to him when requested, Tulsi argued, demonstrated the absence of any intention to commit a crime (as though consent to have a conversation equates with consent to unwanted physical contact). He also argued that even if Gill had in fact engaged in the conduct alleged, it was so 'slight' that it could not be treated as an offence. The implication of this argument was that the act of slapping a woman on the bottom was so 'slight' that, even though it fell within the letter of the offence, it could not be treated as falling within the scope of the offence.

About ten months from the party at the Kapur residence, the high court held in favour of Gill, quashing the complaints. The high court's reasons